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1962 Acts of Assembly, ch. 623 (recodification excerpt, pp. 1092-1096)

[p. 1092] 1092 [VA., 1962 ACTS OF ASSEMBLY the ordinances of the board. Such designations and assignments may be changed whenever desired by the board and during any temporary disability or absence of a member the board may designate another member to act until such disabled or absent member shall resume his duties.

§ 15.1-672. The board shall, at its first meeting, or as soon thereafter as practicable, determine what appointive officers are necessary for the proper and efficient administration of the county and shall prescribe the qualifications, powers and duties of such officers and fix their compensation. The board shall forthwith, or as soon as desirable, make appointments to fill such offices. All other employees of the county shall be employed by the board, or under its authority; any officer or employee, whether appointed by the board or under its authority may be removed by the board at any time except as specially provided by law. The member designated as the head of a department shall have the power of removal of any officer or employee in such department.

§ 15.1-673. The chairman shall attend the meetings of the board and preside thereat. The chairman shall acquaint himself with the conduct of each of the county departments (in addition to those under his immediate supervision) and from time to time shall report to the board with such recommendations as he shall deem desirable.

ARTICLE 3. COUNTY MANAGER PLAN.

§ 15.1-674. Under the county manager plan all of the legislative powers of the county, however conferred or possessed by it, shall be vested in a board of five members to be known as the county board. The members of the board shall be elected in the manner hereinafter provided and for terms of four years. The county board shall appoint the county manager, who need not be a resident of the county or of the State. The county board shall elect one of its members as chairman, who shall preside over its meetings. The chairman shall be elected by the board annually and any vacancy in the office shall be filled by the board for the unexpired term. The chairman shall have the same powers and duties as other members of the board with a vote but no veto and shall be official head of the county.

With the exception of those officers whose election is provided for by popular vote in section one hundred and ten of the Constitution and the trial justice or county judge, members of the board shall be the only elective county officials. The county board shall be a body corporate and as such shall have the right to sue and be sued in the same manner as is now provided by law for boards of supervisors.

§ 15.1-675. Except as to persons appointed by it, neither the county board nor any of its members shall direct or request the appointment of any person to or his removal from any office or employment by the county or in any way take part in the appointment of or removal of officers and employees of the county. Except for the purpose of inquiry, the board and its members shall deal with the administrative services solely through the county manager and the heads of departments whom it may be empowered to appoint and neither the board nor any member thereof shall give orders either publicly or privately to any other county employee. Any member violating the provisions of this section shall be guilty of a misdemeanor and upon conviction thereof shall forfeit his office.

§15.1-676. (a) Notwithstanding the provisions of §§ 15.1-674 and 15.1-694, if, in any county operating under the county manager plan provided for in this chapter, a majority of the qualified voters voting on the question submitted in the election held as provided in paragraph (e) of this section shall vote in favor of the election of the members of the county board and the filling of vacancies on the board as hereinafter

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provided in this section, then upon the entry of an order by the circuit court of the county, or a judge thereof in vacation, setting forth the results of such election, the members of the county board shall thereafter be elected and vacancies on the board shall be filled as provided in this section.

(b) Notwithstanding the provisions of paragraph (a), if a majority of the qualified voters in such election vote in favor of the election of the members of the county board as provided by paragraph (f) hereof then upon the entry of an order by the circuit court of the county or a judge thereof in vacation, setting forth the results of the election, the members of the county board shall thereafter be elected as provided in paragraph (f) hereof.

(c) Each of such members shall take office on the first day of January after his election and shall hold office until his successor is elected and qualified. Thereafter at each regular November election there shall be elected one or more members of the county board to succeed the member or members whose terms expire on or before the first day of January next succeeding such election; the members so elected shall be elected for terms of four years each and shall take office on the first day of January next succeeding their election.

(d) When any vacancy shall occur in the membership of the county board the judge of the circuit court of the county shall, if the term of the office wherein the vacancy exists shall

continue for one year or more after the next succeeding regular November election, issue a writ of election to fill such vacancy, such election to be held at the next regular November election. The member so elected shall hold office for the unexpired term.

(e) The election to determine whether the members of the county board shall be elected as provided in paragraph (f) of this section shall be called and held as follows: If a petition signed by two hundred or more qualified voters in any such county shall on or before the first day of April nineteen hundred fifty-eight, be filed with the circuit court of the county, or a judge thereof in vacation, asking that a referendum be held on such question, the court or judge shall, on or before the first day of May, nineteen hundred fifty-eight, by an order entered of record, require the election officials of the county at the time prescribed by law for the next primary election to be held in July, nineteen hundred fifty-eight, to open a poll and take the sense of the qualified voters of the county on the questions as herein provided. The clerk of the county shall cause a notice of such election to be published in some newspaper, published or having a general circulation in the county, once a week for three consecutive weeks, and shall post a copy of such notice in the courthouse of the said county. The regular election officials of the county, at the time designated therein, shall open the polls at the various voting places in the county and conduct the election in such manner as is provided by law for other elections, in so far as the same is applicable. The election shall be by separate ballot, which shall be prepared by the electoral board and distributed to the various election precincts as in other elections. The ballots to be used shall be printed as follows: Shall the members of the county board be elected biennially for four year terms, as provided in paragraph (f) of § 15.1-676, as amended, of the Code of Virginia? Yes ☐ No ☐ The election shall in all respects be held as provided in § 24-141 of the Code of Virginia.

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(f) If the result of the election held as provided in paragraph (e) hereof be for the election of the members of the county board as provided in this paragraph then the provisions of this paragraph shall supersede all other provisions of this section and the members of the county board shall be elected as hereinafter set forth.

(1) The successors to the members whose terms expire in nineteen hundred fifty-eight shall be elected for terms of two years; thereafter all such members shall be elected for four year terms in the November election of the years in which the terms expire; the terms of members so elected shall begin on January one of the year following their election.

(2) Successors to the members whose terms expire in nineteen hundred fifty-nine and nineteen hundred sixty-one shall be elected for terms of three years at the November election in such years, respectively; thereafter all such members shall be elected for four year terms in the November election of the years in which the terms expire; the terms of members so elected shall begin on the first day of January following their election.

(3) Successors to the members whose terms expire in nineteen hundred sixty shall be elected for terms of four years; thereafter all such members shall be elected for four year terms in the November election of the years in which the terms expire; the terms of members so elected shall begin on January one of the year following their election.

(4) Vacancies shall be filled as provided by paragraph (d) hereof.

§ 15.1-677. The administrative and executive powers of the county, including the power of appointment of all officers and employees whose appointment or election is not otherwise provided by law, are vested in an official known as the county manager, who shall be appointed by the county board at its first meeting or as soon thereafter as practicable. He shall receive such compensation as shall be fixed by the board. The officers whose election by popular vote is provided for in section one hundred and ten of the Constitution and the trial justice or county judge, the school board and the superintendent of schools shall not be subject to appointment but shall be selected in the manner prescribed by law. The heads of all departments other than those hereinbefore referred to and excepted from the provisions of this section shall be selected by the county board; provided that if a majority of the qualified voters voting in the election required by § 15.1-668 vote in favor thereof, then the heads of the several county departments, other than those hereinbefore referred to and excepted from the provisions of this section shall be appointed by the county manager.

§ 15.1-678. The officers of the county shall give such bonds as are now required by general law, except that the bond of the treasurer shall be in such penalty as the court or judge may require, but not less than fifteen per centum of the amount to be received annually by him. In addition thereto, the county board shall have power to fix and require bonds in excess of the amounts so required, and to require bonds of other county officers and employees in their discretion, conditioned on the faithful discharge of their duties and the proper accounting for all funds coming into their possession.

§ 15.1-679. The term of office of such county manager shall expire on June thirtieth of each year after nineteen hundred fifty-two, but except as hereinafter provided, he shall be notified at least sixty days before the expiration of his term if his services are not desired for the ensuing twelve months' period. He shall receive such annual salary as the board may prescribe payable in monthly installments from county funds. He shall devote his full time to the performance of the duties imposed on him by law, and the performance of such other duties as may be directed by the board.

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To perform his duties during his temporary absence or disability the manager may designate by letter filed with the clerk of the board a qualified administrative officer of the county to be acting manager. In the event of failure of the manager to make such designation, the county board may, by resolution, appoint an officer of the county to perform the duties of the manager until he shall return or his disability cease.

The board may at any time remove the county manager for neglect of duty, malfeasance or misfeasance in office, or incompetency; provided, that if a majority of the qualified voters voting in the election required by § 15.1-668 vote in favor thereof, the county manager shall, after December thirty-first, nineteen hundred fifty-two, be appointed for an indefinite period and be subject to removal by the county board at any time, any other provision of law to the contrary notwithstanding. In case the board determines to remove the county manager so appointed, he shall be given, if he so requests, a written statement of the reasons alleged for the proposed removal and the right of a hearing thereon at a public meeting of the board prior to the date on which his final removal shall take effect, but pending and during such hearing the county board may suspend him from office, provided that the period of suspension shall be limited to thirty days. The action of the board in suspending or removing the county manager shall not be subject to review.

§ 15.1-680. (1) In the year nineteen hundred fifty-two there may in any county adopting the form of organization and government provided for in this article be a referendum on the following questions:

1. Shall the position of attorney to the county board be created? Yes ☐ No ☐

2. If such position is created, shall the county attorney be: Elected by the people ☐
Appointed by the county board ☐

The provisions of § 15.1-695 shall apply, and if a majority of the qualified voters voting in an election therein provided for, vote in favor of the creation of such position, then the county board shall provide for the creation of the office of county attorney in accordance with the results of such referendum and fix his compensation, which shall not be less than thirty-five hundred dollars, nor more than six thousand dollars.

(2) The duties of the county attorney shall consist in representing the county board in any legal proceeding in which the board or any of its members are sued in their official capacity; providing legal advice to the board in the form of written opinions in connection with the official acts of such board or its members; preparing county ordinances when requested to do so by the county board; codifying the ordinances of the county; attending all board meetings; performing all legal services incident to the foregoing powers; and performing such other duties as may be prescribed by the board; provided that such duties shall not include bringing any suit or action on behalf of the county board or its members.

(3) No duties shall be assigned the county attorney which are in conflict with those duties required by law to be performed by the attorney for the Commonwealth of the county; provided, that, if such county attorney is provided for, the Commonwealth's attorney shall not be required to attend meetings of the county board.

(4) Should the voters favor the appointment of the county attorney by the county board he

shall serve at the pleasure of the board but in no case shall his period of employment exceed one year without renewal by a majority vote of said board. It shall be unlawful for the county board to employ more than one attorney at a time and in the case of such employment he shall be designated as the county attorney by appropriate

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written resolution adopted by a majority vote of the county board and the termination of his services, if the board has power to terminate the same, shall be in like manner.

(5) The county attorney, whether appointed or elected, shall be a resident of the county, and admitted to practice before the Supreme Court of Appeals of Virginia at the time of his appointment or filing for election as the case may be.

(6) If the county attorney is to be elected by the people, he shall be elected at the next regular election following the referendum above provided for, for a term which shall end at the same time as that of the Commonwealth's attorney in office when such election is held; thereafter the county attorney shall be elected for the same period, at the same time and in the same manner as the Commonwealth's attorney of the county.

§ 15.1-681. The county board shall have full power to inquire into the official conduct of any office, officer or employee under its control, and to investigate the accounts, receipts, disbursements and expenses of any such office, officer or employee; for these purposes it may subpoena persons who are employees of such county as witnesses, administer oaths and require the production of books, papers and other evidence in their control; and in case any such witness fails or refuses to obey any such lawful order of the board, he shall be deemed guilty of a misdemeanor.